shall be reviewed, and a decision rendered by the Board on the basis of the total record. In its decision, the Board shall advise the grievant-complainant of his right to appeal to the Board of Appeals and Review, U.S. Civil Service Commission, Washington, D.C. 20415, from the decision of the Department's Board, relative to the issue of discrimination only, provided such appeal is submitted within 10 days from receipt thereof. A copy of any appeal to the Commission shall also be submitted to the Department's Board of Appeals and Review.

(2) *In connection with an adverse action.* (i) When a complaint is part of an adverse action, it shall be handled through the adverse action procedure outlined in §746.4 of this chapter. Upon receipt of an adverse action appeal from the installation head's decision where an allegation of discrimination based on sex is attached, and an investigation or hearing is requested, the decision-making authority at the first appellate level shall request the Special Assistant for Employee Relations to assign a specially selected and trained hearing officer-investigator to conduct an investigation or hearing. The issue of discrimination and the merits of the adverse action shall form the basis for the investigation or hearing. The hearing officer-investigator shall submit his report of the investigation or hearing, and it shall become a part of the adverse action file. Based on the total evidence before him, the decision-making authority at the first appellate level shall render a decision on the merits of the adverse action as well as the issue of discrimination. The decision-making authority at the first appellate level shall advise the appellant-complainant that if the decision is not satisfactory he has a right to appeal the decision to the Board of Appeals and Review, Post Office Department, Washington, D.C. 20260, within 10 days from receipt thereof, or to the Regional Office, U.S. Civil Service Commission.

(ii) If the appellant-complainant elects to appeal to the regional office of the Civil Service Commission, and the adverse action is in excess of a 30-day suspension, the case shall be reviewed on merits and procedure as well as the issue of discrimination. If the adverse action is not in excess of a 30-day suspension, the case shall be reviewed on procedures and the issue of discrimination. If the appellant-complainant elects to appeal the first appellate level decision to the Department's Board of Appeals and Review, the merits of the adverse action and the issue of discrimination shall be reviewed and a decision rendered by the Board on the basis of the total record. In its decision, the Board shall advise the appellant-complainant of his right to appeal to the Board of Appeals and review, U.S. Civil Service Commission, Washington, D.C. 20415, from the decision of the Department's Board, relative to the issue of discrimination only, provided such appeal is submitted within 10 days from receipt thereof. A copy of any appeal to the Commission shall also be submitted to the Department's Board of Appeals and Review.

(3) *In connection with a promotion grievance.* When a complaint is part of a promotional grievance, it shall be handled through the existing promotion appeal procedure. Upon receipt of a promotion grievance appeal, where an allegation of discrimination based on sex is attached, the decision-making authority at the first appellate level shall request the Special Assistant for Employee Relations to assign a specially selected and trained hearing officer-investigator to investigate the allegation. The investigator shall submit his report and findings to the decision-making authority and they shall become part of the promotion grievance case file. Based on the total evidence before him, the decision-making authority shall render a decision based on the procedural handling of the promotion as well as the issue of discrimination. In all appellate decisions the grievant-complainant must be advised of his further appeal rights to the appropriate office of the U.S. Civil Service Commission.

(4) *In connection with race, creed, color, or national origin.* When a complaint filed under Executive Order 11246 (race, creed, color, or national origin) includes an allegation of discrimination based on sex, it shall be handled through the Equal Employment Opportunity complaint procedure outlined in § 747.3. The investigation and adjudication of the complaint shall include the issue of discrimination based on sex as well as any other allegation of discrimination.

(5) *In connection with nonselection for employment.* Upon receipt of a complaint from an applicant alleging discrimination based on sex in connection with nonselection for employment, but not involving a disputed rating in an open competitive examination, a specially selected and trained hearing officer-investigator shall be assigned by the Special Assistant for Employee Relations to investigate the allegation. The investigator shall submit a report of the investigation and his findings to the Deputy Equal Employment Opportunity Officer. The Deputy Equal Employment Opportunity Officer shall render a decision based on the total evidence before him, and shall advise the complainant that if he is not satisfied with the decision, he has a right to appeal to the Equal Employment Opportunity Officer, Assistant Postmaster General, Bureau of Personnel within 10 days from receipt of the decision. If the Deputy Equal Employment Opportunity Officer's decision is appealed, the Equal Employment Opportunity Officer shall render a decision in the matter and shall advise the complainant that if he is not satisfied with the decision, he has a right to appeal to the Board of Appeals and Review, Civil Service Commission, Washington, D.C. 20415, provided such appeal is made within 10 days from receipt of the decision. Upon receipt of a complaint from an applicant alleging discrimination based on sex in connection with nonselection for employment, and involving a disputed rating in an open competitive examination, the complainant shall be advised that his complaint must be directed to the Civil Service Commission office which conducted the examination.

(6) *Retention of regional complaint file.* After the Deputy Equal Employment Opportunity Officer has submitted his disposition report to the Equal Employment Opportunity Officer, the regional office retention file of the case shall be returned to the appropriate control clerk in the regional office.

TIMOTHY J. MAY,
General Counsel.

SEPTEMBER 6, 1967.

[F.R. Doc. 67-10607; Filed, Sept. 11, 1967; 8:47 a.m.]

Title 43—PUBLIC LANDS: INTERIOR

Chapter II—Bureau of Land Management, Department of the Interior

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 4266]

[Utah 0146674; 828; 1836]

UTAH

Partial Revocation of Executive Order No. 8652

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), it is ordered as follows:

1. Executive Order No. 8652 of January 28, 1941, which reserved public lands within described areas in Utah for use of the Department of the Air Force as an aerial bombing and gunnery range, is hereby revoked so far as it affects the following described areas:

SALT LAKE MERIDIAN

T. 1 S., R. 19 W.,
Sec. 14, N½;
Sec. 17, SE¼NE¼.

The areas described aggregate 320 acres (Tooele County).

2. Until 10 a.m. on March 8, 1968, the State of Utah shall have a preferred right of application to select the lands as provided by R.S. 2276, as amended (43 U.S.C. 852). After that time the lands shall be open to the operation of the public land laws generally, including the mining laws, subject to valid existing rights, the provisions of existing withdrawals, and the requirements of applicable law. All valid applications received at or prior to 10 a.m. on March 8, 1968, shall be considered as simultaneously filed at that time. Those received thereafter shall be considered in the order of filing.

The lands have been open to applications and offers under the mineral leasing laws.

Inquiries should be addressed to the Manager, Land Office, Bureau of Land Management, Salt Lake City, Utah.

DAVID S. BLACK,
Under Secretary of the Interior.

SEPTEMBER 6, 1967.

[F.R. Doc. 67-10600; Filed, Sept. 11, 1967; 8:46 a.m.]

Title 46—SHIPPING

Chapter II—Maritime Administration, Department of Commerce

SUBCHAPTER A—POLICY, PRACTICE, AND PROCEDURE

[General Order 85, Rev.]

PART 206—MISCELLANEOUS FEES

Subpart A—Charges for Statistical or Economic Data

Effective upon publication hereof in the FEDERAL REGISTER, Subpart A of this part is hereby revised to read as follows:

Subpart A—Charges for Statistical or Economic Data

Sec.
206.1 Purpose.
206.2 Data required in the public interest.
206.3 Data providing special benefit.
206.4 Charges.
206.5 Procedure.

AUTHORITY: The provisions of this Subpart A issued under secs. 3, 204, 49 Stat. 293, as amended, 1987, as amended; 15 U.S.C. 192, 46 U.S.C. 1114; sec. 1, 40 Stat. 1256, as amended; sec. 1, 49 Stat. 292; 15 U.S.C. 192, 189a.

§ 206.1 Purpose.

To set forth the charges to be made for statistical or economic data, furnished to an individual or a group by the Maritime Administration, and to describe the policy and procedure applicable thereto.

§ 206.2 Data required in the public interest.

The basic statistical data required by the Maritime Subsidy Board in considering applications for operating-differential subsidy under Title VI, Merchant Marine Act 1936, as amended, include:

(a) For each year of a given 3-year period, outbound and inbound liner and nonliner cargo, broken down between commercial and military, showing U.S.-flag and foreign-flag carryings for areas and countries covered by each service for which subsidy is requested;

(b) For each year of a given 3-year period, number of sailings per annum by each U.S.-flag line and by all foreign-flag lines serving countries on the service for which subsidy is sought.

The above data will be considered as being required in the public interest and will be furnished free of charge to an applicant for operating-differential subsidy and to any other party directly concerned.

§ 206.3 Data providing special benefit.

Any additional statistical or economic data furnished to an individual or a group will be considered as providing a special benefit to the recipient, above and beyond that accruing to the public at large, and a charge will be made for such data, as indicated in § 206.4.

§ 206.4 Charges.

To recover the cost to the Federal Government of statistical or economic data furnished within the purview of § 206.3, including the direct and indirect costs thereof, the Maritime Administration will make a charge of:

$6 per hour for regular time, and
$9 per hour for overtime,

for each employee's time required to produce the information.

§ 206.5 Procedure.

(a) An applicant desiring statistical or economic data should submit a formal written request therefor to the Maritime Administrator. In the case of data which, under § 206.3, provides a special benefit to the recipient, the project will be undertaken, at the discretion of the Maritime Administrator, on the basis of the nature and scope of the work, its estimated cost, availability of personnel and other services, and other pertinent information.

(b) Upon approval of the project, the applicant will be requested to make payment in advance in the amount of the estimated cost of the work, based on the charges set forth in § 206.4.

(c) Cost estimates of $500 or less will be established as fixed fees. Such fixed fees will be kept as close to the actual cost as possible.

(d) Cost estimates of more than $500 shall be subject to revision as the work progresses, to reflect actual costs. If the advance payment is insufficient to cover the actual cost, the applicant will be required to make such additional payment as may be required before the project is completed. Conversely, if the advanced payment is more than the actual cost, the difference will be refunded to the applicant.

Dated: September 7, 1967.

By order of the Maritime Subsidy Board/Maritime Administration.

JAMES S. DAWSON, Jr.,
Secretary.

[F.R. Doc. 67-10717; Filed, Sept. 11, 1967; 8:52 a.m.]

Title 50—WILDLIFE AND FISHERIES

Chapter I—Bureau of Sport Fisheries and Wildlife, Fish and Wildlife Service, Department of the Interior

PART 32—HUNTING

National Wildlife Refuges in Alaska

The following regulations are issued and are effective on date of publication in the FEDERAL REGISTER. These regulations apply to public hunting on National Wildlife Refuges in Alaska.

General conditions: Hunting shall be in accordance with applicable State regulations. Portions of refuges which are open to hunting are designated by signs and/or delineated on maps. Information on special conditions applying to individual refuges and maps can be obtained at refuge headquarters or from the office of the Regional Director, Bureau of Sport Fisheries and Wildlife, 730 Northeast Pacific Street, Portland, Oreg. 97208.

§ 32.12 Special regulations; migratory game birds; for individual wildlife refuge areas.

Migratory game birds may be hunted on the following refuges:

Arctic National Wildlife Range, Post Office Box 500, Kenai, Alaska 99611.

Clarence Rhode National Wildlife Refuge, Post Office Box 346, Bethel, Alaska 99559.

Izembek National Wildlife Range, Cold Bay Alaska.

Kenai National Moose Range, Post Office Box 500, Kenai, Alaska 99611.

Kodiak National Wildlife Refuge, Box 825, Kodiak, Alaska 99615.

Nunivak National Wildlife Range, Bethel, Alaska.

The provisions of this special regulation supplement the regulations which govern hunting on wildlife refuge areas generally, which are set forth in Title 50, Code of Federal Regulations, Part 32, and are effective through December 14, 1967.

JOHN D. FINDLAY,
Deputy Regional Director, Bureau of Sport Fisheries and Wildlife.

SEPTEMBER 6, 1967.

[F.R. Doc. 67-10645; Filed, Sept. 11, 1967; 8:50 a.m.]

PART 32—HUNTING

Bombay Hook National Wildlife Refuge, Del.

The following special regulation is issued and is effective on date of publication in the FEDERAL REGISTER. The limited time ensuing from the date of the adoption of the Federal migratory game bird regulations to and including establishment of State hunting seasons makes it impracticable to give public notice of proposed rule making.

§ 32.12 Special regulations; migratory game birds; for individual wildlife refuge areas.

DELAWARE

BOMBAY HOOK NATIONAL WILDLIFE REFUGE

The public hunting of rails and gallinules on Bombay Hook National Wildlife Refuge is permitted from September 1, 1967, through November 9, 1967, inclusive; and of mourning doves from September 15, 1967, to October 24, 1967, inclusive; and from December 15, 1967, to January 13, 1968, inclusive; and of woodcock from November 17, 1967, through January 20, 1968, inclusive; and of common snipe from November 3, 1967, to December 22, 1967, inclusive; but only on the area designated by signs as open to hunting. This open area, comprising 141 acres, is delineated on a map available at the refuge headquarters, Rural Delivery No. 1, Smyrna, Del. 19977, and from the Regional Director, Bureau of Sport Fisheries and Wildlife, U.S. Post Office and Courthouse, Boston, Mass. 02109. Hunting shall be in accordance with all applicable State and Federal regulations covering the hunting of rails and gallinules, mourning doves, woodcock, and common snipe.